

GENERAL AGREEMENT AND UNDERTAKING

This General Agreement and Undertaking (“Agreement”) is entered into on this ____ day of _____, 20____, by and between **Party A** and **Party B**, each individually referred to herein as a “Party” and collectively as the “Parties.”

1. PURPOSE AND SCOPE

Whereas the Parties, being desirous of establishing a mutually cognizable framework governing their respective rights, responsibilities, obligations, undertakings, representations, and liabilities in connection with the subject matter contemplated herein, hereby agree that the provisions contained within this Agreement shall, subject to applicable law, constitute the entire understanding between the Parties with respect to the matters expressly or impliedly contemplated herein.

2. OBLIGATIONS OF THE PARTIES

Each Party shall, to the extent reasonably practicable and without prejudice to any rights otherwise available to such Party, perform and discharge its respective obligations in a timely, diligent, bona fide, and commercially reasonable manner.

Failure, omission, delay, negligence, or purported inability on the part of either Party to perform any obligation shall not, in the absence of a written waiver expressly executed by the other Party, operate to extinguish, diminish, postpone, or otherwise prejudice the enforceability of such obligation.

3. REPRESENTATIONS AND WARRANTIES

Each Party represents and warrants that:

- (a) it possesses the requisite authority and capacity to enter into this Agreement;
- (b) the execution and performance of this Agreement shall not, to the best of its knowledge, contravene any applicable law, contractual obligation, undertaking, or other legally binding instrument to which such Party is subject; and
- (c) all information furnished by such Party in relation to this Agreement shall be materially accurate and shall not, to the best of such Party’s knowledge, contain any deliberate misrepresentation or omission calculated to materially alter the understanding of the other Party.

4. CONFIDENTIALITY

Neither Party shall disclose, disseminate, reproduce, transmit, communicate, or otherwise make available to any third party any confidential, proprietary, commercially sensitive, or otherwise non-public information received from the other Party, except where such disclosure is required by law, competent governmental authority, judicial process, or is otherwise expressly authorized in writing by the Party to whom such information belongs.

The foregoing obligation shall survive the expiration or termination of this Agreement.

5. LIABILITY AND INDEMNIFICATION

To the maximum extent permissible under applicable law, each Party agrees to indemnify, defend, and hold harmless the other Party, together with its representatives, officers, employees, agents, and permitted assigns, from and against any and all claims, demands, losses, damages, liabilities, costs, expenses, proceedings, or

causes of action arising directly or indirectly from any material breach of the representations, warranties, covenants, or obligations assumed by such Party under this Agreement.

6. DEFAULT

The occurrence of any material breach, repudiation, persistent non-performance, or other substantial failure to comply with the provisions hereof shall constitute an event of default.

Upon the occurrence of an event of default, the non-defaulting Party may, without prejudice to any other remedy available to it under applicable law or equity, issue written notice requiring the defaulting Party to cure such breach within a reasonable period specified therein.

Failure to cure such breach within the prescribed period may result in termination of this Agreement and/or pursuit of such remedies as may otherwise be legally available.

7. TERMINATION

Either Party may terminate this Agreement upon written notice to the other Party where the continuation of the contractual relationship has become materially impracticable by reason of a substantial breach that remains uncured following reasonable opportunity for rectification.

Termination shall not affect any rights, obligations, liabilities, or remedies which accrued prior to the effective date of termination.

8. FORCE MAJEURE

Neither Party shall be deemed liable for failure or delay in performing an obligation where such failure or delay is attributable to circumstances beyond the reasonable control of the affected Party, including, without limitation, natural disasters, governmental restrictions, war, civil disturbance, infrastructure failure, epidemic, interruption of communications, or other comparable circumstances.

9. GOVERNING LAW AND JURISDICTION

This Agreement shall be governed by and construed in accordance with the laws applicable in the jurisdiction mutually agreed upon by the Parties.

Any dispute, controversy, claim, or difference arising out of or relating to this Agreement, including any question concerning its existence, validity, interpretation, performance, breach, or termination, shall be submitted to the competent courts having jurisdiction over the matter.

10. ENTIRE AGREEMENT

This Agreement constitutes the entire understanding between the Parties concerning its subject matter and supersedes all prior negotiations, representations, communications, understandings, or arrangements, whether oral or written, relating thereto.

No amendment, modification, variation, or waiver of any provision herein shall be effective unless reduced to writing and duly executed by the Parties.

11. SEVERABILITY

If any provision of this Agreement is determined by a court or competent authority to be invalid, unlawful, void, or unenforceable, such determination shall not affect the validity or enforceability of the remaining provisions,

which shall continue in full force and effect to the fullest extent permissible under applicable law.

12. WAIVER

No failure, omission, or delay by either Party in exercising any right, power, privilege, or remedy arising under this Agreement shall operate as, or be construed to constitute, a waiver thereof, nor shall any single or partial exercise of any such right preclude any subsequent or further exercise thereof.

13. NOTICES

Any notice, communication, demand, request, or other correspondence required or permitted under this Agreement shall be made in writing and delivered to the address or electronic communication channel designated by the relevant Party for such purpose.

A notice shall be deemed duly communicated upon actual receipt or, where applicable, upon reasonable evidence of successful transmission.

14. COUNTERPARTS AND EXECUTION

This Agreement may be executed in counterparts, each of which shall be deemed an original and all of which, when taken together, shall constitute one and the same instrument.

Electronic signatures, scanned signatures, and other legally recognized methods of execution shall, to the extent permitted by applicable law, have the same effect as an original handwritten signature.

15. ACKNOWLEDGEMENT

By executing this Agreement, each Party acknowledges that it has read, understood, and voluntarily accepted the provisions contained herein and confirms that it has had reasonable opportunity to obtain independent professional or legal advice concerning the nature, consequences, and enforceability of the obligations assumed pursuant hereto.

IN WITNESS WHEREOF, the Parties hereto have caused this Agreement to be executed on the date first written above.

PARTY A

Name: _____

Signature: _____

Date: _____

PARTY B

Name: _____

Signature: _____

Date: _____